

Smt. Vijai Laxmi v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 6 May 2011 · Writ - C No. 22971 of 2011 · **Writ disposed; petitioner relegated to clause 7.10 application.**

HEADNOTE

Where a consumer seeks mandamus for a fresh electricity connection but a bill in her name records an existing service (later disconnected), the High Court will not decide the disputed state of supply on writ and will relegate her to clause 7.10 of the U.P. Electricity Supply Code, 2005, with a time-bound consideration and a direction to connect only if the authority finds the grievance genuine.

FACTUAL SUMMARY

Smt. Vijai Laxmi sought a writ directing the electricity corporation (respondents 2 and 3) to grant her an electricity connection on her application. The corporation produced an office report dated 3 May 2011 stating that a connection already existed in her premises. She denied any supply there. A bill dated 15 April 2011 stood in her name and recorded that the connection had been disconnected on 29 April 2011.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

fresh connection on disputed existing service

HOLDING

On a consumer's claim that no electricity connection exists in her premises, a bill in her name recording disconnection is inconsistent with that claim. The Court will not mandamus a fresh connection on that disputed record and will instead require the consumer to apply under clause 7.10 of the U.P. Electricity Supply Code, 2005. If the application is made within seven days of a certified copy, the authority must consider and dispose of it within fifteen days, and if it finds the cause genuine, give the connection immediately. ¶ 2

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances

Where a consumer seeks mandamus for a fresh electricity connection but a bill in her name records an existing service (later disconnected), the High Court will not decide the disputed state of supply on writ and will relegate her to clause 7.10 of the U.P.. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A LIVE CONNECTION ALREADY EXISTED IN THE PETITIONER'S PREMISES

Office report of 3 May 2011 versus the petitioner's denial; the 15 April 2011 bill showed her name and disconnection on 29 April 2011, but the Court did not determine the true state of supply. ¶ 2

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON MERITS TO A FRESH CONNECTION

Left to the clause 7.10 authority; connection to be given only if that authority finds the cause genuine. ¶ 2